



A COMMUNITY OF CHOICE

Planning and Development Department

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MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Seth Lloyd, AICP Senior Planner
Subject: PLTA-25-9 – Amending UDC 2.2.8 Assigned Zoning
Date: September 22, 2025

Background:

The item for consideration is a **UDC Text Amendment**. This is approved by **Ordinance**.
The proposed Governing Body review schedule is as follows:

- Introduction and Referral 9/22/2025
- Public Services Committee 10/6/2025
- Second reading 10/13/2025
- Public Services Committee 10/20/2025
- Third and final reading 10/27/2025

Planning Commission Recommendation:

The Planning Commission heard this item at their September 15, 2025, meeting and voted 4-0 to recommend the Governing Body approve the proposed text amendment with the following change:

- 2.2.8.d.1 changed to be a bulleted list instead of in-line text

Planning Commission's proposed changes are reflected in the attached ordinance.

The Planning Commission Staff report is attached and has not been changed (Except that areas changed by the Planning Commission have been noted in green to attempt to reduce confusion when comparing the Planning Commission Staff Report to the Ordinance).

Attachments:

1. Ordinance
2. Redlined Ordinance
3. Planning Commission Staff Report

ORDINANCE NO. _____

ENTITLED: "AN ORDINANCE AMENDING SECTION 2.2.8, ASSIGNED ZONING, OF THE CHEYENNE UNIFIED DEVELOPMENT CODE TO CONFORM WITH THE COMPREHENSIVE REVISION OF LARAMIE COUNTY ZONING REGULATIONS."

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That the Governing Body of the City of Cheyenne finds that the text amendment to the Unified Development Code (UDC) that is the subject of this ordinance meets the review criteria specified in Section 2.4.1.d of the UDC.

Section 2. That on September 15, 2025, the Planning Commission conducted a public hearing, reviewed the proposed text amendment, and recommended approval of said text amendment.

Section 3. That on August 5, 2025, Laramie County enacted a comprehensive revision of its zoning regulations, including substantial modifications to zoning districts, permitted uses, and administrative procedures. Because the City of Cheyenne has adopted regulations and policies that reference or rely upon Laramie County zoning classifications and standards, the County's revision necessitated a review of City regulations, policies, and processes to address areas affected by these changes.

Section 4. That Section 2.2.8, Assigned Zoning, of Article 2, Applications, Procedures and Criteria, of the Unified Development Code of the City of Cheyenne, Wyoming, is hereby amended to read:

2.2.8 Assigned Zoning

- a. **Intent.** The assigned zoning process is intended to provide review standards and procedures for zoning districts established on land or property currently without a City zone assignment.
- b. **Applicability.** An application for assigned zoning may be initiated by the Director for the following purposes:
 1. To assign a zone district to land being annexed to the City; or
 2. To assign a zone district to land which would become unzoned due to the termination of an existing zone district (e.g. a text amendment eliminating a zone district).
- c. **Specific Procedures.** An assigned zoning has the following specific procedures:
 1. *Staff Review.*

- (a) For annexations, following the submittal of an annexation petition or the initiation of annexation by the City, the Director shall assign a zone that best matches the land's current county zone, after taking into account allowed uses, current uses, and surrounding zoning, as applicable. Staff shall make available to the public a policy document indicating what city zone is most analogous to the county zones. This policy document shall be available online and may be amended from time to time. (Should the applicant who has initiated the annexation desire a different zone than that of the zone best matched to the land's current county zone, the applicant may submit a zoning map amendment in accordance with the provisions of UDC Section 2.2.1.) Staff shall then schedule a public hearing before the Planning Commission to consider the assigned zoning. The public hearing shall be scheduled for the Planning Commission meeting immediately preceding the City Council public hearing for the related annexation.
- (b) For zoning terminations, the Director shall assign a zone that best matches the current zoning of the property, after taking into account allowed uses, current uses, and surrounding zoning, as applicable. Staff shall schedule the public hearing before the Planning Commission to coincide with the action terminating the zone district.

2. *Notice.* Staff shall follow the notice requirements below for the assigned zone:

- (a) *Posted Notice.* For applications initiated by the City, signs indicating that there is a pending development application shall be posted generally delineating the boundaries of the area of land proposed for the zoning. Each sign shall include legible text stating that a "Zoning Map Amendment" is proposed. For applications initiated by a property owner's request for annexation, staff shall provide one (1) sign for each road frontage, to be posted by the applicant on each road frontage, indicating that there is a pending development application. All posted notices shall be posted at least seven (7) days prior to the scheduled Planning Commission review and the party responsible for posting the notice shall make reasonable and good faith efforts to maintain the posted notice. When such efforts are made, failure of this posted notice shall not be grounds to invalidate the application.
- (b) *Published Notice.* Notice shall be published in a newspaper of general circulation and to the City of Cheyenne website at least fifteen (15) days but no more than twenty-one (21) days prior to the scheduled Planning Commission review stating the general location of the property, the nature of the application, the location for further information on that application, and the date, time and location of the Planning Commission review.
- (c) *Mailed Notice.* All owners within three hundred (300) feet of subject property and within the subject area shall be mailed notice stating the general location of the property, the nature of the application, the location for further information on that application, and the date, time and location of the Planning Commission public hearing. When mailed notice is

properly addressed based on the latest property information available from the publicly accessible assessors map and deposited in the mail at least fifteen (15) days prior to the scheduled hearing, failure of a party to receive such notice shall not be grounds to invalidate any action taken.

3. *Planning Commission Public Hearing.* The Planning Commission shall review the application according to the criteria in this section. At the close of the public hearing the Planning Commission shall:
 - (a) Recommend to the City Council that the application be approved; or
 - (b) Recommend to the City Council that the application be approved with specific conditions or modifications; or
 - (c) Recommend to the City Council that the application be denied, stating the specific reasons for denial.
 4. *City Council Review.* Upon a recommendation from the Planning Commission, the application shall be scheduled for review by the City Council in accordance with the procedures specified in the municipal code. The Assigned zoning shall be introduced such that the final approval of the assigned zoning is aligned with the approval of the document creating the situation requiring the assigned zoning.
 5. *Effect of Decision.* The decision by the City Council is the final decision.
 - (a) After the approval of ~~an~~ any zoning assignment that accompanies an annexation, the assigned zoning shall be effective at the same time as the annexation.
 - (b) After the approval of any zoning assignment that accompanies a zone termination, the assigned zoning shall not be effective prior to the termination of the previous zone.
- d. **Review Criteria.** In reviewing, providing comments, and making recommendations and decisions on a proposed assigned zone, the staff, Planning Commission and City Council shall use the following criteria:
1. The proposed zoning assignment is the most analogous City zone to the current zone when taking into consideration allowed uses, current uses, or surrounding City zones. ~~Zoning for standard county zones shall be assigned based on the policy document, while zones not listed on the policy document and terminated City zones shall be assigned a City zone on a case by case basis.~~ shall be assigned a City zone based on:
 - (a) Permitted uses,
 - (b) Uses that could reasonably be anticipated for conditional use approval under the current zoning,
 - (c) Current uses, or
 - (d) Surrounding City zoning,as deemed most suitable for the property being assigned a zone in terms of allowing the landowner to continue the current use of the land while respecting the current and anticipated uses of surrounding property.

Section 5. Sections, paragraphs, sentences, clauses, and phrases of this ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this ordinance is declared unconstitutional or otherwise unlawful, such declaration shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.

Section 6. This ordinance shall be in full force and effect upon approval and publication.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

PATRICK COLLINS, MAYOR

(SEAL)

ATTEST:

KYLIE SODEN, CITY CLERK

Published: _____
Wyoming Tribune-Eagle



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Planning and Development Department

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PLANNING COMMISSION

SEPTEMBER 15, 2025

STAFF REPORT

REQUEST: A Text Amendment amending the Unified Development Code 2.2.8 Assigned Zoning

CASE NUMBER: PLTA-25-9

PREPARED BY: Seth Lloyd, AICP, Senior Planner, Planning and Development Department

RECOMMENDED MOTION:

Move to recommend the Governing Body **approve** text amendments to the Unified Development Code 2.2.8 Assigned Zoning as outlined in this staff report and recommended by staff, noting the amendments meet the review criteria of UDC 2.4.1.d.

BACKGROUND:

The City's Unified Development Code (UDC) was adopted by the Governing Body on January 23, 2012, by Ordinance Number 3943 with an effective date of April 30, 2012. The Unified Development Code is the regulatory document carrying out the vision of PlanCheyenne and is reviewed annually pursuant to UDC 1.1.7 [Annual Review Requirement] to determine if any particular standard or regulation is timely, relevant and adequately addresses current market conditions. In addition to the annual review, the Planning and Development Director and City Engineer are authorized under UDC 2.4.1.b.3 to bring forward text amendments on their own initiative.

The proposed text amendments are to the assigned zoning portion of the UDC. This process was established in 2023 to set a zone in the case of land not having a City zone within City limits. With an annexation requested by a landowner, the landowner could request a City zone which is determined to be improper by the Governing Body. In such cases, it is beneficial to have a base zone to fall back upon when the property still meets the criteria to be annexed.

When the City established assigned zoning, the County had zones largely similar to the City's zone. At one time, the City and County even had identical zoning, but gradually the zones drifted apart slightly in allowed uses or regulations; however, in 2023, the City and County by and large still had very similar zone districts. In August of 2025, the County overhauled their zoning code and regulations, resulting in significant discrepancies between County zoning districts and City zones. For example, the County's version of medium-density residential zoning has been modified and now more closely aligns with the City's higher-density residential zones. The most significant of these changes is the County eliminating a variety of zones in areas without central water and sewer and making the land all County LU Land Use.

The LU zone is unique in that nearly all uses are allowed, but with varying levels conditional uses – from quarries with County Commissioner approval, to offices with County staff approval.

A strict application of the current wording of the UDC's Assigned Zoning would lead to challenges when annexing land under the new County zoning. As such Staff proposes more of a case-by-case analysis to each case of assigned zoning, based on not just the allowed uses of the current zoning, but also the current uses of the subject property and the current zoning of nearby properties under City jurisdiction. This approach would have been appropriate when assigned zoning was first established, but the previous approach allowed for greater predictability.

Under the proposed amendment, projects going through the assigned zoning process may have more review and debate – as some proposals may not be as clear-cut as they were under the previous process.

A few grammatical edits are also included in the proposed amendment.

PROPOSED AMENDMENTS:

2.2.8 Assigned Zoning

- a. **Intent.** The assigned zoning process is intended to provide review standards and procedures for zoning districts established on land or property currently without a City zone assignment.
- b. **Applicability.** An application for assigned zoning may be initiated by the Director for the following purposes:
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 2. To assign a zone district to land which would become unzoned due to the termination of an existing zone district (e.g. a text amendment eliminating a zone district).
- c. **Specific Procedures.** An assigned zoning has the following specific procedures:
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 - (a) For annexations, following the submittal of an annexation petition or the initiation of annexation by the City, the Director shall assign a zone that best matches the lands' current county zone, when taking into account allowed uses, current uses, and surrounding zoning, as applicable accompanying the annexation of a property. Staff shall make available to the public a policy document indicating what city zone is most analogous to the county zones. This policy document shall be available online and may be amended from time to time. (Should the applicant who has initiated the annexation desire a different zone than that of the zone best matched to the land's current county zone, the applicant may submit a zoning map amendment in accordance with the provisions of UDC Section 2.2.1.) Staff shall then schedule a public hearing before the Planning Commission to consider the assigned zoning. The public hearing shall be scheduled for the Planning Commission meeting immediately preceding the City Council public hearing for the related annexation.
 - (b) For zoning terminations, the Director shall assign a zone that best matches the current zoning of the property, when taking into account allowed uses, current uses, and surrounding zoning, as applicable. Staff shall schedule the public hearing before the Planning Commission to coincide with the action terminating the zone district.
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legible text stating that a “Zoning Map Amendment” is proposed. For applications initiated by a property owner’s request for annexation, staff shall provide one (1) sign for each road frontage, to be posted by the applicant on each road frontage, indicating that there is a pending development application. All posted notices shall be posted at least seven (7) days prior to the scheduled Planning Commission review and the party responsible for posting the notice shall make reasonable and good faith efforts to maintain the posted notice. When such efforts are made, failure of this posted notice shall not be grounds to invalidate the application.

- (b) *Published Notice.* Notice shall be published in a newspaper of general circulation and to the City of Cheyenne website at least fifteen (15) days but no more than twenty-one (21) days prior to the scheduled Planning Commission review stating the general location of the property, the nature of the application, the location for further information on that application, and the date, time and location of the Planning Commission review.
 - (c) *Mailed Notice.* All owners within three hundred (300) feet of subject property and within the subject area shall be mailed notice stating the general location of the property, the nature of the application, the location for further information on that application, and the date, time and location of the Planning Commission public hearing. When mailed notice is properly addressed based on the latest property information available from the publicly accessible assessors map and deposited in the mail at least fifteen (15) days prior to the scheduled hearing, failure of a party to receive such notice shall not be grounds to invalidate any action taken.
3. *Planning Commission Public Hearing.* The Planning Commission shall review the application according to the criteria in this section. At the close of the public hearing the Planning Commission shall:
 - (a) Recommend to the City Council that the application be approved; or
 - (b) Recommend to the City Council that the application be approved with specific conditions or modifications; or
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1. The proposed zoning assignment is the most analogous City zone to the current zone when taking into consideration allowed uses, current uses, or surrounding City zones. Zoning ~~for standard county zones shall be assigned based on the policy document, while~~

~~zones not listed on the policy document shall be assigned a City zone based on permitted uses, uses that could reasonably be anticipated for conditional use approval under the current zoning, current uses, or surrounding City zoning, as deemed most suitable for the property being assigned a zone in terms of allowing the landowner to continue the current use of the land while respecting the current and anticipated uses of surrounding property, and terminated City zones shall be assigned a City zone on a case-by-case basis.~~

REVIEW CRITERIA:

Review of a UDC text amendment shall be measured by the following three (3) criteria of Section 2.4.1.d:

1. COMPREHENSIVE PLAN:

"The amendment is in accordance with general goals and policies of the Comprehensive Plan, or is necessary to address an emerging issue not anticipated in the Comprehensive Plan and is not inconsistent with the plan."

PlanCheyenne encourages the adoption of strategies that simplify annexation, along with consistency in development regulations between County and City, to the extent practical (Policy 1.2D). The proposed Assigned Zoning will allow for consistency of land use expectations through the transition into City jurisdiction.

2. STATE STATUTORY REQUIREMENTS:

The amendment is consistent with the Wyoming Statutes, and specifically the Municipal Planning and Zoning statutes. The following Articles are all listed verbatim from Wyoming State Statute.

From ARTICLE 6 – ZONING of TITLE 15 CITIES AND TOWNS:

WYO 15-1-602. Regulations; powers of governing body; public hearing; notice.

- (a) The governing body shall specify how regulations, restrictions and the district boundaries are to be determined, established, enforced, amended, supplemented or otherwise changed. No governing body shall require that a land use or physical development be consistent with a local land use plan unless the applicable provisions of the local land use plan have been incorporated into the local zoning regulations.
- (b) No regulation, restriction or boundary is effective until after a public hearing. At least fifteen (15) days notice of the time and place of the hearing shall be published in a newspaper of general circulation in the city or town.

Assessment: This amendment proposes modifying the Unified Development Code to create a section of code to help establish zoning and regulations for properties annexed into city limits.

3. HEALTH, SAFETY, AND PUBLIC WELFARE:

"The amendment promotes the general health, safety and public welfare."

This amendment would promote the general health, safety and public welfare of Cheyenne. The amendment will help to make sure a zone and regulations are established when a property is annexed into city limits.

CONCLUSION:

Staff concludes that this text amendment meets the review criteria of UDC 2.4.1.d.

STAFF RECOMMENDATION:

Staff recommends **approval** of text amendments to the Unified Development Code 2.2.8 Assigned Zoning as outlined in this staff report and recommended by staff, noting the amendments meet the review criteria of UDC 2.4.1.d.
